Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, December 14, 2020 immediately following the General Government Committee Meeting

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order

Mayor Collier called the meeting to order at 5:15 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of the Minutes

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the following Minutes of previous Council meetings be adopted:

- Regular Meeting November 16, 2020
- Closed Session November 16, 2020
- Special Meeting November 18, 2020
- Closed Session November 18, 2020
- Special Meeting November 24, 2020
- Closed Session November 24, 2020
- Special Meeting December 7, 2020

CARRIED

4. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Alexander Harras, Acting Director of Legislative & Information Services/Clerk, noted that no items of correspondence had been received regarding the contents of the meeting agenda.

5. Delegation and Petitions/Public Hearings

None

6. Correspondence

Moved by: M. Crawford
Seconded by: A. Khan

That the Correspondence report dated December 14, 2020 containing Items of Correspondence be received for information.

CARRIED

7. Reports

7.1 Community Affairs & Planning Committee Report

None

7.2 General Government Committee Report

Main Motion

That the Resolutions of the General Government Committee Meeting dated December 14, 2020, be ratified.

Mayor Collier vacated the Chair and Deputy Mayor Dies assumed the Chair.

Motion to Amend

Moved by: S. Collier
Seconded by: M. Crawford

That Item 6.4 of the General Government Committee Report of December 14, 2020 be amended as follows:

- Removing recommendation #4; and
- Adding a new recommendation #6 as follows:

  Staff be directed to review the Annandale site and report back to the January 2021 GGC Meeting with options for a potential trail connection across the Annandale lands.

CARRIED

Mayor Collier resumed the Chair.

Main Motion as Amended

Moved by: L. Bower
Seconded by: A. Khan

That the Resolutions of the General Government Committee Meeting dated December 14, 2020, be ratified, as amended.

CARRIED

7.3 Summary of Advisory Committee Activities

None

7.4 Departmental Reports

None

8. Regional Councillors' Report

Regional Councillors provided an update regarding the recent Regional Council Meeting, noting a motion brought forward by Mayor Collier and Regional Councillor Dies regarding provincial changes to the *Conservation Authorities Act*.

Moved by: J. Dies
Seconded by: S. Lee

That the Regional Councillors' Report of December 14, 2020 be received for information.

CARRIED

9. Business Arising from Notice of Motion

Motion to Suspend the Rules of Procedure

Moved by: A. Khan
Seconded by: R. Tyler Morin

That the rules of procedure be suspended to allow the introduction of three motions without notice:

- Upper York Sewage Solutions Project
- Support of High Intensity Supports At Home
- Lower Harwood Avenue South Corridor – Westney Road/Dreyer Drive and McRae Road Segment

CARRIED
on 2/3rds

9.1 Limiting Food Delivery Fees

Councillor Tyler Morin and Regional Councillor Lee introduced the motion and reviewed its contents. Councillor Tyler Morin and Regional Councillor Lee responded to questions on the motion from Council Members.

Moved by: R. Tyler Morin
Seconded by: S. Lee

WHEREAS Promoting local businesses has been a central priority for Ajax Council, the Ajax-Pickering Board of Trade, and the Town's Economic Development team throughout the COVID-19 crisis, leveraging #shoplocal messaging and promoting local groups (like the Durham Region Eats group, boasting almost 17,000 members) to amplify support for our extensive and diverse restaurant industry;

AND WHEREAS The Canadian Federation of Independent Business estimated in July that 158,000 small- and medium-sized businesses are at risk of closing (which will include family-owned and small chain restaurants), and asserted in November that this number will certainly be higher following second wave closures (CTV News, Nov. 2020);

AND WHEREAS Restaurants Canada reports that "prior to the COVID-19 pandemic, Ontario's foodservice sector was a $37 billion industry, employing more than 480,000" people but is "on track to lose as much as $17.8 billion in annual sales" due to COVID-19 closures and lockdowns;

AND WHEREAS in order to reduce the burden on Ajax restaurants, the Town's Economic Development team refreshed our restaurant guide, making it available for the first time online, supported by engagement and promotion activities and extended temporary patio permitting policies;

AND WHEREAS Throughout mandatory lockdowns imposed by the Province of Ontario, residents and restaurants have relied on third-party delivery services, including Skip the Dishes, DoorDash, and UberEats (and others), but restaurants are reporting that the service fees to utilize these services can be up to 30%, causing some to lose money on orders (Toronto Life, May 2020);

AND WHEREAS as part of the Durham Economic Taskforce, an agreement with Ritual ONE was negotiated to provide restaurants with commission-free online ordering capability until the end of 2021, but we recognize that consumers value the convenience of apps over online ordering;

AND WHEREAS the Province of Ontario passed Third Reading of Bill 236, *Supporting Local Restaurants Act, 2020* on December 1, 2020 in response to the concerns of restaurateurs, capping delivery fees at 15%, with an overall cap of 20% inclusive of all fees. However, this cap only applies to specific restaurants – which are not chains, that currently have indoor dining facilities, and that are prohibited from permitting indoor dining by an order or direction under the *Reopening Ontario (A Flexible Response to COVID-19) Act, 2020* or the *Health Protection and Promotion Act*;

THEREFORE BE IT RESOLVED THAT:

1. Ajax Council commend and lend their support to the Province of Ontario for taking these steps to respond to small business needs, and protect Ajax's valued food service industry;

2. Ajax Council request that the Province of Ontario extend this cap to all restaurants, regardless of size or location to ensure ongoing equity and long-term business survival as we recover from COVID-19;

3. That this motion be distributed to: Hon. Doug Ford, Premier of Ontario; Hon. Ernie Hardeman, Minister of Agriculture, Food and Rural Affairs; Hon. Prabmeet Sarkaria, Associate Minister of Small Business and Red Tape Reduction; Hon. Rod Phillips, Minister of Finance and MPP for Ajax.

CARRIED

9.2 **Upper York Sewage Solutions Project**

Regional Councillor Dies and Councillor Bower introduced the motion and reviewed its contents. Council members discussed recent conversations at the Region pertaining to the Upper York Sewage Solutions project.

Moved by: J. Dies
Seconded by: L. Bower

WHEREAS the need for Upper York Sewage Solutions (UYSS) project has been discussed since 2004; and

WHEREAS the UYSS Environmental Assessment (EA) identifies the Lake Simcoe Water Reclamation Centre Alternative as the preferred solution (2014); and

WHEREAS the EA process has cost upwards of $100M, and no decision has been made on this EA for a project with a timeline of completion (in-service date) for 2026 in order to adequately service York Region growth (Aurora, Newmarket and East Gwillimbury); and

WHEREAS a discharge to Lake Ontario option, which requires twinning pipes from York - through the protected Oak Ridges Moraine - to be treated at the Duffin Creek Water Pollution Control Plant (DCWPCP) in Pickering is being reconsidered, as outlined in Minister Yurek's July 2020 letter to Chair Emmerson; and

WHEREAS sewage at the DCWPCP does not go through a tertiary treatment process before effluent is released into Lake Ontario, which is already negatively impacting water quality, and remains a top concern for the Town of Ajax; and

WHEREAS the Town of Ajax has spent in excess of $2M advocating to the Province of Ontario (successive governments over 10+ years) about the need for tertiary treatment at the DCWPCP at current effluent levels, and in 2019 Hon. Jeff Yurek, Minister of the Environment, Conservation and Parks issued a Minister's Order allowing expansion (up to 630 mL/d) of the DCWPCP without implementation of tertiary treatment processes to mitigate negative impacts to the Lake Ontario nearshore;

WHEREAS additional capacity – not considered within the Minister's Order – at the DCWPCP would be utilized to accommodate the Lake Ontario option, leading to accelerated expansion at the DCWPCP and consequences that were not considered in the Phosphorus Reduction Action Plan (PRAP) undertaken by the Regions of York and Durham as required by the then-Minister of the Environment prior to issuing a Minister's Order on the EA;

THEREFORE BE IT RESOLVED THAT:

1. Ajax Council affirm our support for the Lake Simcoe Water Reclamation Centre Alternative, as identified in the technical EA, over any discharge to Lake Ontario option for York Region effluent;

2. Ajax Council strongly oppose the Lake Ontario option for York Region effluent;

3. Ajax Council direct Mayor Collier to send a formal letter to Hon. Jeff Yurek, Minister of the Environment, Conservation and Parks, and Hon. Rod Phillips, Minister of Finance and Ajax MPP, to advise them of our concerns with a southern route option that will lead to further effluent discharge to the Lake Ontario nearshore;

4. Ajax Council request Hon. Jeff Yurek, Minister of the Environment, Conservation and Parks to regularly consult with the Region of Durham and impacted municipalities, including the Town of Ajax and City of Pickering;

5. Ajax Council request that the Chippewas of Georgina Island (and any impacted Durham Region Indigenous Peoples, as appropriate) continue to be consulted as full partners in the process, and that their concerns be respected and considered in all decision-making; and

6. This resolution be shared with Hon. Jeff Yurek, Minister of the Environment, Conservation and Parks, Hon. Rod Phillips, Minister of Finance and MPP for Ajax, Durham Region Council; Durham Region MPPs.

CARRIED

Recorded Vote

In Favour: Regional Councillor Dies, Councillor Bower, Regional Councillor Crawford, Councillor Khan, Regional Councillor Lee, Councillor Tyler Morin, Mayor Collier
Opposed: None

9.3 **Support of High Intensity Supports At Home**

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

Mayor Collier and Regional Councillor Dies introduced the motion and reviewed its contents.

Moved by: S. Collier
Seconded by: J. Dies

WHEREAS there is a growing need and an opportunity for home and community care to undertake an enhanced role in supporting overall healthcare system capacity as beds have been reduced in order to maintain infection control (long-term care homes) and support COVID/flu surges (hospitals);

AND WHEREAS Covid-19 has created a tremendous strain on the health system and increased the need for safe and adequately funded home support services for high risk older adults and people with disabilities in Ajax and across the Region;

AND WHEREAS Ontario Health, Local Health Integration Networks (LHINs) and service providers are working to expand the capacity of home and community care services (known as High Intensity Supports At Home Programs - HISAHPs) to relieve capacity pressures in hospitals and long-term care homes;

AND WHEREAS HISAHPs support patients in acute care hospitals with a discharge destination of a Long-Term Care (LTC) Home, or people residing in the community on a wait-list for an LTC Home who are at risk of requiring hospitalization, ensuring high-needs patients continue to receive premium care when beds are in short supply or wait-lists are long;

AND WHEREAS a public opinion poll conducted by Campaign Research for Home Care Ontario found that 95% of seniors believe that staying in their own home with the support of home care is the safest environment for them to live during a pandemic and 91% want to stay in their own home or apartment as long as possible;

AND WHEREAS services like HISAHPs provide the most personalized and responsive care, adapting quickly to changing needs, increasing consistency and providing continuity amongst a client's dedicated team of professionals;

AND WHEREAS HISAHPs are proven to provide benefits such as demonstrated improved health outcomes when delivered in home settings, reduced visits to emergency departments and lowered hospital admissions, while strengthening linkages between home care, community support services, primary care, mental health, and social service sectors;

AND WHEREAS the Ontario Community Support Association has called on the Minister of Health, Minister of Long Term Care and the Minister of Finance to increase and annualize investments in HISAHPs to provide safe and appropriate supports to vulnerable

individuals and ensure clients receiving these services don't find themselves prematurely institutionalized;

AND WHEREAS the Seniors for Social Action Ontario (SSAO) has lobbied the province to fund alternatives to institutionalization with a goal to end the systemic discrimination of forcing older adults and others into institutions because of a lack of not for profit, community-based care choices;

AND WHEREAS the Central East LHIN (who fund local home and community care) issued an Expression of Interest (closed in November) to existing service provider organization seeking partners to implement HISAHPs;

AND WHEREAS the province is investing more than $115 million to support 850 patients across the province with high, complex care needs in order to access services in the comfort of their own homes, care is not only critical to keeping patients safe and healthy during COVID-19, but also part of the provincial government's ongoing commitment to end hallway health care and ensure Ontario's hospitals are not overwhelmed.

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council supports provincial government investments in home and community care programs to ensure high-needs patients continue to receive the premium care they deserve when beds are in short supply or wait-lists are long;

2. The Minister of Health, the Minister of Long-Term Care, and the Minister of Finance be urged to increase and annualize funding to High Intensity Supports At Home Program administrators to ensure they have the tools and capacity to meet the growing demand for home and community care programs;

3. The Town requests that the Central East LHIN registers to be a delegation at an upcoming Region of Durham Council meeting to review the High Intensity At Home Support Program model, and potential partnership opportunities between the Region, LHIN and the Durham Ontario Health Team; and

4. This motion be circulated to the Hon. Christine Elliott, Minister of Health, the Hon. Merrilee Fullerton, Minister of Long-Term Care, the Hon. Rod Phillips, Minister of Finance, the Region of Durham and Durham Municipalities, the Central East LHIN, and the Ajax Pickering Hospital management and Board of Directors.

CARRIED

9.4 **Lower Harwood Avenue South Corridor – Westney Road/Dreyer Drive and McRae Road Segment**

Mayor Collier and Councillor Bower introduced the motion and reviewed its contents.

Moved by: S. Collier
Seconded by: L. Bower

WHEREAS cycling facility and parking improvements for Harwood Avenue South were identified in the 2013 Lower Harwood Avenue Study and Street Treatment Design Recommendation Report, and reconfirmed in the Active Transportation Network which was approved by Council as part of the 2019 Integrated Transportation Management Plan (ITMP);

AND WHEREAS the first phase of work along Harwood Avenue South was implemented from Westney Road/Dreyer Drive to Lake Driveway in 2016, which included reducing the number of motor vehicle lanes between Westney Road/Dreyer Drive to Lake Driveway from four lanes to two lanes, installing buffered on-road bike lanes between Westney Road/Dreyer Drive to McRae Road, and adding bump outs and on-street parking with off-road cycle tracks between McRae Road and Lake Driveway;

AND WHEREAS this work was undertaken to enhance the cycling network, provide traffic calming, and provide additional parking for waterfront users without having to use waterfront lands to expand parking;

AND WHEREAS since the segment between Westney Road/Dreyer Drive and McRae Road was reduced to two lanes and on-road bike lanes were added, the Town and Council

have received persistent complaints about the transition from four lanes to two lanes, along with the safety of the two-lane segment of road;

NOW THEREFORE BE IT RESOLVED THAT:

1. Staff be directed to present a report to the appropriate standing committee of Council in April 2021 outlining options to:

   a) Improve the transition from four lanes to two lanes between Westney Road/Dreyer Drive to Lake Driveway;

   b) Improve safety on the two lane segment of road from Westney Road/Dreyer Drive and McRae Road; and

   c) Consider reverting the Westney Road/Dreyer Drive and McRae Road segment back to four lanes;

   taking into consideration the potential costs and timing for each option, as well as future ITMP active transportation and road improvements to the remaining Lower Harwood Avenue South sections, including Bayly Street to Falby Court and Falby Court to Westney Road.

CARRIED

Mayor Collier resumed the Chair.

10. By-laws

Moved by: S. Lee
Seconded by: M. Crawford

That By-law numbers 54-2020 to 61-2020 be read a first, second and third time and passed.

CARRIED

11. Notice of Motion

Councillor Bower indicated that she and Regional Councillor Crawford will be bringing forward a motion regarding rodent control to the January meeting of Council.

12. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities including a community Ward 1 meeting, Medallion development Open House in January 2021, and the Town's Merry & Bright program. Members of Council wished Councillor Khan a Happy Birthday. It was noted that food and toy donations are still be accepted by the Salvation Army. Mayor Collier wished everyone a safe and happy Holiday Season on behalf of Ajax Council.

13. Confirming By-Law

Moved by: R. Tyler Morin
Seconded by: A. Khan

That By-law number 62-2020 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on December 14, 2020 be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: M. Crawford
Seconded by: J. Dies

That the December 14, 2020 meeting of the Council of the Town of Ajax be adjourned.

(6:02 p.m.)

CARRIED

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Mayor

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D-Clerk